Statement of Deficiency Report

Department of Health
P.O. Box 47874, Olympia, WA 98504-7874
TEL: 360-236-4732

Newport Academy 3804 Hastings Avenue West Port Townsend, WA 98368	Crystal Goodwin
Agency Name and Address	Administrator

Investigation	Tuesday, April 12, 2022	42124
Inspection Type	Investigation Start Date	Investigator Number
2022-3096	BHA.FS.60957239	BHA inpatient
Case Number	License Number	BHA/RTF Agency Services Type

Please note that the deficiencies/violations/observations noted in this report are not all-inclusive, but rather were deficiencies/violations/observations that were observed or discovered during the investigation.

Deficiency Number and Rule Reference	Findings	Plan of Correction
WAC 246-341-0420 (13)(a), Agency policies and procedures. Each agency licensed by the department to provide any behavioral health service must develop, implement, and maintain policies and procedures that address all of the applicable licensing and certification requirements of this chapter including administrative and personnel policies and procedures. Administrative polices and procedures must demonstrate the following, as applicable: (13) Reporting critical incidents. A description of how the agency directs staff to	Based on staff interview and policy and procedure review, the agency failed to ensure that they followed their policy to report to the department within 48 hours any critical incident that occurred to an individual for 1 of 4 patients reviewed (Patient #3). Failure to report critical incidents to the department can lead to poor patient outcomes. Findings included:	Compliance Manager, Crystal Goodwin, completed training with newly onboarded Executive Director, Interim Executive Director and Residential Manager on reporting requirements in line with WAC 246-341-0420. Moving forward, the Executive Director will be responsible for reporting any instances of abuse to the Department of Health.

report to the department within forty-eight hours any critical incident that occurs involving an individual, and actions taken as a result of the incident. A critical incident is a serious or undesirable outcome that occurs in the agency including: (a) Allegations of abuse, neglect or exploitation	1. During an interview on 04/12/22 at 1:00 PM, Staff A, Licensing and Compliance Manager, stated that the alleged sexual assault incident was only reported to the Department of Children, Youth and Family (DCYF) and was not reported to DOH. Staff A was not aware that this should have been reported to the Department of Health. 2. Review of the policy titled, "Completing and Submitting Reports", revised 01/01/21 showed that the agency would "complete and submit reports in accordance with WAC 246-341-0420 (13)." 3. Review of the policy titled, "Reporting Critical Incidents Involving Individuals", revised 01/01/21, showed that "serious or undesirable outcomes" must be reported to DOH by the end of the next business day. Critical Incidents included "sexual contact between clients."	
WAC 246-341-0600, (3)(a) Clinical – Individual rights. (3) Each agency must ensure the applicable individual participant rights described in subsection (1) of this section are: (a) Provided in writing to each individual on or before admission	Based on staff interview and policy and procedure review, the agency failed to provide patient rights to 1 of 4 patients reviewed (Patient #3). Findings included: 1. Review of the policy titled, "Individual Rights", revised 01/01/21, showed that the patient rights would be posted in a central location and would be reviewed with all patients upon admission. The procedure showed that all patients and parents or guardians are provided a copy of the rights upon admission.	Compliance Manager, Crystal Goodwin, completed training with all Residential Supervisors on consents during the admission process. We discussed the process for generating consents, protocols and timelines, what to do when a client refuses to sign consents and any additional questions.

	2. During an email exchange between the Investigator and Staff A, Licensing and Compliance Manager, on 04/25/22 at 5:16 PM, Staff A stated they were unable to locate signed patient rights for Patient #3.	

STATE OF WASHINGTON

DEPARTMENT OF HEALTH

May 25, 2022

Newport Academy
3804 Hastings Ave. West
Port Townsend, WA 98368

Re: Case Number: 2022-3096 BHA
License Number: BHA.FS.60957239
Acceptable Plan of Correction
Date of Survey: April 12, 2022

Dear Administrator:

This letter is to inform you that after careful review of the Plan of Correction (POC) you submitted for the investigation recently conducted at your facility, the Department has determined that the POC is acceptable. You stated in your plan that you will implement corrective actions by the specified timeline. By this, the Department is accepting your Plan of Correction as your confirmation of compliance.

Based on the scope and severity of the deficiencies listed in your statement of deficiency report, the Department will not conduct an unannounced follow-up compliance visit to verify that all deficiencies have been corrected. Any fees that may be enforced based on the results of the investigation will be implemented consistent with WAC 246-341-0365 and WAC 246-337-990

In addition, the Department reserves the right to pursue enforcement action for any repeat and/or uncorrected deficiencies based on applicable statute and rules.

Please feel free to contact me at the email address you have on file if you have questions regarding the investigation.

The survey team sincerely appreciates your cooperation and hard work during the investigation.

Sincerely,

Investigator 42124
Behavioral Health Investigator
Health Services Consultant 4